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BEFORE THE FEDERAL MARITIME COMMISSION RECEIVED

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;
CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,
INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No.

99-15

SERVED

AUG 13 1999

FEDERAL MARITIME COMMISSION

COMPLAINT

I. COMPLAINANT

Carolina Marine Handling, Inc. ("CMH") is a corporation organized and existing pursuant to the laws of South Carolina, with its principal place of business at North Charleston, South Carolina. CMH is a successor company to a business which together have provided marine terminal services, stevedoring, terminal-related services, licensed freight forwarding, and steamship agency services at the Port of Charleston and elsewhere for three generations. CMH and its predecessor stevedoring and maritime operations have for many years served common

carriers and other vessels in the U.S. foreign and domestic trades.

Since 1995 CMH vigorously has sought to have an active role in the commercial development of the former Charleston Naval Complex in North Charleston following its closure by the federal government in 1995. From 1996 through early 1999, CMH provided terminal services in various capacities to breakbulk cargo vessels calling at the former Charleston Naval Complex pursuant to regularly scheduled common carrier and other services in U.S. foreign commerce.

CMH's address is: P.O. Box 71506, North Charleston, South Carolina 29415.

II. RESPONDENTS

A. South Carolina State Ports Authority

The South Carolina State Ports Authority ("SPA") is an instrumentality and agency of the State of South Carolina. SPA was created and granted authority by the State to exercise control over the regulation, development and maintenance of all South Carolina harbors or seaports and their port facilities (including the Port of Charleston) for the handling of U.S. foreign and domestic water-borne commerce. The SPA is an 'operating' port authority, not a "landlord" port authority, at the Port of Charleston.

At all times material to this Complaint, SPA was and is engaged in the business of a marine terminal operator throughout the Port of Charleston and at the Charleston Naval Complex in North Charleston. At all such times, SPA was and is in the business of furnishing wharfage, dock, warehouse and other terminal facilities in connection with ocean common carriers and other carriers operating in United States foreign commerce.

SPA is a marine terminal operator subject to Commission jurisdiction under the Shipping Act of 1984 **as** amended (46 U.S.C. app. § 1701, et seq.) ("the 1984 Act"). See also, Port of Charleston Terminal Tariff No. 8, Rule 34-021, regarding actions commenced against the SPA pursuant to acts of the Congress designating the forum in which such actions should be commenced, and from which the SPA would not have sovereign or eleventh amendment immunity.

SPA's mailing address is: P.O. Box 22287, Charleston, South Carolina 29413-2287.

B. Charleston Naval Complex Redevelopment Authority

The Charleston Naval Complex Redevelopment Authority ("RDA") is an instrumentality and agency of the State of South Carolina. RDA was established pursuant to an

enactment of the General Assembly of the State of South Carolina to acquire, manage and dispose of the Charleston Naval Complex, a federal military installation that will be deeded to the State of South Carolina following its closure by the federal government.

The RDA's purpose is to oversee the disposition of real and personal federal property that will be deeded to the State and/or to the private sector, as referred to in the Defense Base Closure and Realignment Act, 10 U.S.C. § 2687, as amended.

At all times material to this Complaint, RDA was and is engaged in the business of a marine terminal operator at the Charleston Naval Complex in North Charleston. At all such times, RDA was and is in the business of furnishing wharfage, dock, warehouse and other terminal facilities in connection with ocean common carriers and other carriers operating in United States foreign commerce. RDA is a marine terminal operator subject to Commission jurisdiction under the 1984 Act.

RDA's mailing address is: 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29405.

**C. Charleston International Projects, Inc. and
Charleston International Ports, LLC**

Charleston International Projects, Inc. ("CIP") is a start-up Michigan corporation which is not licensed to do business in South Carolina and which has no operating history, no office, no published telephone number, and no maritime experience or expertise.

Charleston International Ports, LLC (collectively referred to as "CIP" with Charleston International Projects, Inc.) is a recent start-up company that is a successor in interest to Charleston International Projects, Inc., and has no operating history, no office, no published telephone number, and no maritime experience or expertise. It maintains a mailing address at Charleston, South Carolina.

CIP is SPA's "pass-through" company for implementing SPA's thirty-year lease from RDA of extensive marine terminal, dock and related facilities and properties at the former Charleston Naval Complex. CIP is identified by all Respondents as SPA's "private sector partner". CIP will be controlled completely by SPA and will not compete in any way with SPA.

CIP has received approval from RDA's Board of Directors and from SPA's Board of Directors to enter into a

long-term lease with SPA for CIP's total and exclusive right and privilege to the use and full enjoyment of the real and personal property at the Charleston Naval Complex that is covered by the RDA-SPA lease.

CIP intends to operate the facilities at the Charleston Naval Complex as a public marine terminal and to publish a tariff establishing the terms and conditions for public access to such facilities. CIP further intends for this tariff to be identical to the tariff published by SPA.

CIP is holding itself out to operate a marine terminal at the Charleston Naval Complex in North Charleston. CIP is in the business of offering to furnish wharfage, dock, warehouse and other terminal facilities in connection with ocean common carriers and other carriers operating in United States foreign commerce. CIP is a marine terminal operator subject to Commission jurisdiction under the 1984 Act.

CIP's mailing address is: **18** South Adgers Wharf, Charleston, South Carolina 29401.

III. JURISDICTION

The Federal Maritime Commission has jurisdiction over this Complaint pursuant to §§ 3 and 11 of the Shipping Act

of 1984, 46 USC app. §§ 1702 and 1710. The Respondents have violated Section 10 of the 1984 Act, 46 U.S.C. app. § 1709, as more particularly set forth below.

IV. MATTER OF COMPLAINT

A. Carolina Marine Handling, Inc. and its predecessor related companies, which are South Carolina, third-generation stevedoring and marine terminal operators, have a long history serving U.S. ocean-borne commerce at the Port of Charleston and elsewhere, and in recent years at the Charleston Naval Complex.

B. The Port of Charleston is one of the busiest ports on the U.S. East Coast, ranked second in the handling of container tonnage after the Port of New York and New Jersey. The former Charleston Naval Complex is separate and apart from the Port of Charleston, physically, geographically and operationally. The Charleston Naval Complex, historically, has never been a State of South Carolina facility within SPA's jurisdiction.

C. In 1993, the United States Government added the Charleston Naval Complex to the list of redundant military facilities designated for closure. The Charleston Naval Complex, which covers 1,515 acres and employed 22,000 workers when operational as a naval facility, was scheduled

for shutdown in April 1996. A government "plant value" estimate of this property is \$2.3 billion. Congress legislated that closed U.S. military bases are to be deeded to state or local governments, and/or to the private sector.

D. Pursuant to federal legislation, the South Carolina legislature created RDA to oversee the conversion of the Charleston Naval Complex to commercial and governmental use. RDA consists of an appointed seven-member board and an operational staff.

E. On February 8, 1995 RDA issued a public Request for Proposals ("RFP") soliciting business plans for commercial use of the Charleston Naval Complex facilities. In this solicitation, the South Carolina Secretary of Commerce pledged the support of the State of South Carolina for 'a successful venture for [all applicants] at the Charleston Naval Complex" who responded to this RFP solicitation. Thirteen responses were received by RDA proposing business start-up or expansion plans.

F. SPA and CIP did not respond to and did not submit any business plan or other response regarding RDA's Request for Proposals.

G. Based upon the solicitation and representations of RDA and of the Secretary of Commerce, CMH submitted one

of the thirteen business plans. CMH proposed to lease several piers and warehouses in order to attract specific new cargoes to the Charleston gateway. CMH's plan was to attract breakbulk and other non-containerized cargoes.

H. From 1978 through 1994, the Port of Charleston's handling of breakbulk cargoes steadily declined from 50 percent to 5 percent of cargoes moving through the Port of Charleston, which became devoted to containerized cargoes. This decline was the direct result of a deliberate strategy and of deliberate action by SPA.

I. Ninety-two percent of the Port's throughput consists of containerized cargoes. However, even in the limited area available for breakbulk facilities at the Port of Charleston, CMH was and is precluded by SPA from operating a marine terminal facility in competition with SPA. This is because Charleston is an "operating" port and not a "landlord" port; and SPA provides all the terminal services. No Port of Charleston terminals are leased to private parties. In this manner, SPA controls and regulates the performance of all services by any service provider that are performed on SPA facilities. A stevedore must first obtain a license from SPA before its stevedoring services may be authorized.

J. At the Port of Charleston, SPA has applied an arbitrary, unreasonable and discriminatory selection process by refusing to grant authorization to stevedores who seek permission to perform cargo handling functions on SPA facilities for the shipper's account.

K. Beginning in the summer 1993, CMH sought for more than a year to obtain SPA's approval of CMH's license application to perform stevedoring and dockside export packing at the Port of Charleston. During this time, SPA refused to grant CMH this license, imposing a licensing condition that SPA knew CMH could not meet. Specifically, SPA unreasonably demanded that CMH induce a new liner service to commence serving the Port and to select CMH as its stevedore before a license would be issued.

L. However, throughout this time, CMH developed and continued to develop promising and attractive new business for the Port of Charleston which would have required CMH to perform the stevedoring and/or dockside export packing services. Nevertheless, CMH was barred by the SPA for more than a year from obtaining a license and from acting as the stevedore or dockside export packer because CMH's activities would have been for the account of the shipper and not the carrier. Therefore, SPA's licensing policy

unjustly discriminated against the cargo that CMH sought to pack and/or stevedore at the Port of Charleston.

M. During the time that SPA refused to grant CMH its license, SPA solicited, and in some instances obtained, the very business that CMH had attracted and often had been forced to disclose to SPA. Ultimately, CMH obtained a license, but SPA continued to interfere unreasonably in CMH's operations, severely limiting CMH's ability to be competitive and forcing CMH to discontinue its stevedoring activities at the Port of Charleston.

N. CMH's expertise and many contacts in the shipping industry, developed over many years, would enable CMH to successfully attract breakbulk cargoes back to the Charleston gateway through facilities at the Charleston Naval Complex and to secure breakbulk commodities moving in large steady volumes. Such cargo cannot readily move through the Port of Charleston and presently has little access to the Charleston gateway. CMH's goal therefore is to help realize the enormous, untapped potential of the Charleston Naval Complex by re-attracting breakbulk carrier operations to the Charleston gateway, since SPA has, by design, driven breakbulk cargoes away from the Port of Charleston in order to favor container cargoes nearly exclusively.

0. CMH has been actively seeking for the last six years the fair and just opportunity to obtain approval for, and to implement, its plans which would fulfill demonstrated public interest needs of the shipping community and which would inure to the economic betterment of the citizens of South Carolina by creating marine terminal competition at the Charleston gateway.

P. CMH has made clear to RDA and others that CMH desires to participate in the commercial development of the Charleston Naval Complex by seeking approval of long-term leases covering piers, warehouses and outside storage areas, fully detailed in several business plans proposed by CMH to RDA. These business plans would provide, among other things, marine terminal and warehousing services for breakbulk and neo-bulk common carrier vessels, and other vessels.

Q. RDA, for a substantial period of time, falsely and disingenuously led CMH to believe that CMH would be able to obtain a lease or leases to facilities at the Charleston Naval Complex. RDA actually had no intention of fulfilling this commitment, but instead, had a pre-existing scheme to lease to SPA the facilities sought by CMH at the Charleston Naval Complex.

R. RDA entered into a series of short-term arrangements, directly or indirectly, with CMH and other businesses seeking Charleston Naval Complex leases and licenses. However, RDA's ultimate purpose was to implement its pre-arranged scheme to revoke those leases and licenses in order to install SPA at the Charleston Naval Complex. RDA's premeditated scheme has permeated and propelled the entire leasing process at the Charleston Naval Complex, including the 1995 RFP. As a result, various applicants to use the Charleston Naval Complex other than CMH have initiated litigation contesting this tainted process.

S. On December 4, 1995, RDA entered into a five-year sublease with Charleston Shipbuilders, Inc. ("CSI") for extensive facilities at the Charleston Naval Complex. CSI in 1996 entered into a 'secondary sublicense" agreement with CMH, followed by a five-year "secondary sublease" for CMH's use of warehouse facilities and an adjacent pier at the Charleston Naval Complex.

T. CSI was accorded unreasonable preferential treatment and CSI's subtenants suffered unjustifiable prejudice and disadvantage. For example, CSI's lease permitted CSI to pay no rent to RDA in the first year and to pay as little as \$100,000 annually thereafter, while CSI collected over \$1 million in rent from CMH and CSI's other

subtenants. Also, CSI was allowed to be in arrears on rent payments and permitted to purchase Charleston Naval Complex trucks and equipment not made available to CMH and others. In addition, CSI participated in a concerted effort with RDA to deliberately sabotage CMH's marine terminal operations.

U. CMH entered into the short-term sublicense and the short-term sublease with CSI because CMH had been prevented by RDA, through conspiratorial pre-arrangement with SPA and others, from obtaining any long-term lease for any facilities. RDA never responded with any substantive or valid reasons for rejecting CMH's original and supplemental business proposals submitted in response to RDA for the use of marine cargo handling areas of the Charleston Naval Complex.

V. On December 4, 1998, RDA announced that it had decided to cancel its lease with CSI, thereby prematurely terminating CMH's secondary sublease that CMH had obtained through CSI. RDA never intended to grant CMH a long-term lease and, in fact, intended all along to oust CMH from the Charleston Naval Complex to make way for SPA. The termination of the CSI lease also resulted in the termination of all CSI subtenancies and the reversion of those subleased facilities to RDA. This was pursuant to

RDA's premeditated plan to give all these subleased properties to SPA and to SPA's favored lessee through a pass-through arrangement.

W. Consequently, CMH was evicted from the marine cargo handling area at the Charleston Naval Complex on June 7, 1999, causing the cessation of the marine terminal and related services that CMH was providing. CMH's activity included the handling of a substantial frozen chicken export business and the handling of other commodities. CMH was forced to terminate all of its marine employees, sometimes more than 150 in number, since RDA and SPA failed and refused to provide alternative equivalent facilities. CMH was forced to vacate the very warehouse in which CMH already had invested \$300,000 in costly capital improvements, including painting; the replacement and/or repair of compressors, doors, insulation and wiring; and other significant improvements.

X. Prior to this eviction, RDA specifically assured CMH at a specially-called January 28, 1999 RDA meeting, that if CMH's sublease were to be terminated at the Charleston Naval Complex, CMH could continue to use the warehouse and the pier adjacent to this warehouse that CMH had been using during the previous two and one-half years. CMH's sublease with CSI specifically guaranteed use of the

adjacent pier, and the proximity of the pier to CMH's warehouse was crucial to CMH's executing this sublease.

Y. Upon being evicted, CMH asked RDA to fulfill its commitment to permit CMH the continued use of this warehouse and the adjacent pier. However, RDA refused to lease this pier to CMH. Instead, RDA disingenuously referred CMH to another RDA tenant to seek the use of this other RDA tenant's pier. At all times, RDA knew that the other tenant's pier would not be available as needed by CMH. RDA also knew that this other pier was inaccessible to the offered warehouse, and that it was old, outmoded and in such disrepair as to make it dangerous and unusable. This other pier also had insufficient draft for the oceangoing vessels that would need to call for the cargoes that CMH was handling.

To this day, the pier adjacent to the offered warehouse and denied to CMH by RDA remains padlocked and unused by anyone, although during the previous two and one-half years, this pier routinely had been shared by CMH with other users.

Z. Even prior to this eviction, CMH suffered loss of business because RDA and CSI already had decided to terminate the CSI lease and CMH sublease, and RDA and CSI had made these intentions known to CMH's customers. As a

result, CMH's customers feared that the eventual termination of the CSI lease and the CMH sublease would render CMH unable to continue its operations at any Charleston Naval Complex location.

AA. At all times, RDA and SPA actually intended and tried to put CMH out of business completely and to prevent CMH from competing with SPA and its 'pass-through" stand-in designee.

BB. Despite the interest of CMH and other private businesses in developing long-term commercial enterprises at the Charleston Naval Complex, including significant breakbulk terminal operations, RDA decided to ignore the responses to its February 8, 1995 Request for Proposals and the Secretary of Commerce's solicitation and representations. (See Paragraph E above.) Rather, RDA "selected" a plan for the disposition of the Charleston Naval Complex facilities that had not been among those which were submitted in response to the RFP. This selection was pursuant to a scheme concertedly devised by RDA, SPA and CIP whereby RDA would grant a thirty-year lease to SPA, and SPA would install its alter ego "pass-through" stand-in nominee (CIP), for exclusive use of the Charleston Naval Complex terminal facilities.

CC. RDA, on or about April 9, 1999 implemented this previously arranged scheme by signing a thirty-year exclusive lease with SPA for the marine terminal facilities at the Charleston Naval Complex to be utilized by SPA and CIP as a non-containerized marine terminal, cargo handling and berthing area.

DD. Contemporaneous with executing the RDA-SPA lease, SPA entered into a long-term sublease with CIP, new start-up companies having no prior history at Charleston, having no operating history, having no office, having no published telephone number, and having no experience or expertise in the operation of a marine terminal of any kind anywhere.

EE. On August 18, 1998, the RDA Board formally voted to approve this lease between SPA and CIP for a period of thirty years. This RDA-SPA lease expressly refers to CIP as SPA's long-term tenant.

FF. The RDA-SPA lease is subject to the approval of the South Carolina Budget and Control Board. Upon information and belief, the Board intends to give 'rubber stamp" approval to the lease at a scheduled August 12, 1999 Board meeting.

GG. CIP has publicly represented that it will not compete with SPA, and that CIP will be controlled by SPA. Further, SPA publicly has stated that CIP is merely a

"pass-through" stand-in company for SPA. CIP plans to adopt a tariff identical to SPA's marine terminal tariff. These representations and plans demonstrate SPA's dominion and control over the Charleston Naval Complex and CIP's role as a stand-in for SPA, so as to enable the flow of revenue to be directed to favored parties.

HH. SPA has granted CIP exclusive use of all terminal and berthing facilities at the Charleston Naval Complex that were covered by the lease between RDA and SPA. These exclusive agreements between RDA and SPA and between SPA and CIP, if finally approved by the South Carolina State Budget and Control Board, would result in the total and concerted control over all public terminal and berthing facilities in the entire Charleston port area by these three entities to the exclusion of any competitor. By having entered into and implemented these leasing agreements, RDA, SPA and CIP will have fulfilled their deliberate conspiratorial scheme enabling SPA, through CIP, to exercise unfettered control over Charleston Naval Complex property valued in excess of \$100 million.

II. These egregious acts are compounded by the facts that SPA will be charged no rent for the first five years of the RDA-SPA lease; that thereafter the maximum rent will be only \$300,000 annually; that SPA at the end of the lease

can purchase all of the real and personal property covered by the lease for only one dollar; and that significant tax windfalls will be enjoyed by CIP and its principals.

JJ. The RDA-SPA thirty-year lease requires SPA to invest \$7 million (which may include operating expenses) over a six-year period for development of the Charleston Naval Complex. Under a pass-through arrangement, CIP would also be responsible for meeting this infrastructure investment. Because the Charleston Naval Complex is part of a tax-increment financing district, during the first twenty years of the lease all or substantially all taxes collected will be returned directly to infrastructure projects of the Charleston Naval Complex. Therefore, the taxes that CIP pays will be directly returned to CIP and used to satisfy the SPA-CIP \$7 million investment requirement.

KK. RDA, SPA and CIP have crafted a deal in which they are relieved of having to make net expenditures to finance the capital improvements needed to develop and modernize the Charleston Naval Complex. These tax dollars represent public funds that are being 'written off' by the Respondents to compensate them for their required investments in the Charleston Naval Complex.

LL. CMH, while seeking a long-term lease for Charleston Naval Complex facilities, aggressively sought and obtained new cargo traffic for the Charleston Naval Complex and obtained commitments from numerous shippers seeking a gateway for their bulk and breakbulk commodities. This encouraged CMH to submit initial and supplemental business proposals to RDA for CMH's use of Charleston Naval Complex facilities.

MM. However, since RDA planned to evict Charleston Naval Complex tenants in favor of a 30-year lease to SPA (five-years' rent-free and thereafter an annual rent maximum of \$300,000), RDA ignored or rejected all other proposals for Charleston Naval Complex leases that would utilize any of the marine terminal and related facilities. Furthermore, SPA, knowing that it would obtain an exclusive 30-year lease, interfered with CMH's relationships with prospective customers, inducing them to terminate their plans to use terminal and warehouse facilities operated and prospectively to be operated by CMH.

NN. SPA in fact adopted and implemented CMH's business plans and business plans of other Charleston Naval Complex applicants, as SPA's own plans, In addition, SPA informed CMH customers and prospective customers that they could not deal with CMH, and they would have to deal with

SPA exclusively, if they wanted to ship through the Charleston gateway.

00. The Port of Charleston and the Charleston Naval Complex are 100 percent controlled by SPA, or SPA and RDA jointly, and they exercise total control over the provision and allocation of all public marine terminal facilities through an arbitrary, unreasonable and discriminatory process. Such conduct is contrary to the public interest and inconsistent with the obligation to treat all port users fairly. RDA and SPA, as marine terminal operators, have arrogantly disregarded and abrogated their responsibilities as public marine terminal operators.

PP. This sequence of events resulting in CIP's takeover of the Charleston Naval Complex facilities was the result of a pre-arranged and coordinated conspiracy through interlocking relationships among principals to the RDA-SPA and SPA-CIP lease deals and their personnel, representatives and affiliates, which constitute conflicts of interest. Thus, the SPA lease and CIP sublease are the products of a non-transparent process that denied CMH and others their rights to due process, that granted unduly preferential treatment to SPA and CIP, and that caused unreasonable prejudice to CMH and others.

QQ. RDA has used these exclusive lease agreements with SPA and CIP as an unfair device for excluding and eliminating competition, and for evicting in bad faith innocent users and lessees of the Charleston Naval Complex, with the result of forcing them out of business with no place to go.

RR. RDA has authority to enter into and approve all lease agreements covering the Charleston Naval Complex. Therefore, the degree of RDA's control and its involvement in the total operations of the Charleston Naval Complex enables RDA to discriminate in the provision of port facilities against other actual and potential users.

ss. SPA enjoys total statutory control over the commercial Port of Charleston and over all aspects of its port operations, including the provision of berths, terminals, and other marine related services and facilities.

TT. The ultimate victims of the RDA, SPA and CIP scheme are the actual and potential users and beneficiaries of the terminal facilities who must absorb the higher operating costs and user fees, such as through the exorbitant lease payments CMH was forced to pay to CSI in

order to be able to operate at the Charleston Naval Complex.

W. The overall impact of the RDA-SPA and SPA-CIP leases at ~~the~~ Charleston Naval Complex is to allow RDA and SPA to maintain and augment control over all terminal and berthing facilities at both the Port of Charleston and the Charleston Naval Complex, and thereby to eliminate all competition from non-preferred persons, to the detriment of CMH, the citizens of South Carolina and the shipping public.

V. VIOLATIONS OF THE 1984 ACT

By reason of the facts stated in the foregoing Parts I-IV of this Complaint, which are incorporated as if fully set forth herein, CMH has been, is being and will continue to be subject to injury as a direct result of violations of the 1984 Act, prior to and subsequent to May 1, 1999, including but not limited to the following:

- A. Section 10(d)(1), 46 U.S.C app. § 1709
(d)(1)

RDA, SPA and CIP have failed to establish, observe and enforce just and reasonable practices relating to the use of terminal facilities at the Port of Charleston and the

Charleston Naval Complex. This includes, but is not limited to, RDA's and SPA's refusal to negotiate with or make available to CMH adequate and suitable terminal, pier, dock, and storage facilities; RDA's, SPA's and CIP's interference in CMH's use of such facilities; RDA's and SPA's granting concessions to CIP and other persons while denying comparable terminal use to CMH contrary to RDA's and SPA's mandate as public terminals; and RDA's, SPA's and CIP's unjust discrimination and/or unreasonable practices against CMH, its vessels and its cargoes.

- B. Sections 10(b) (11), 10(b) (12), 10(d) (3) and 10(d) (4) (pursuant to the provisions of section 20(e) (3)); 46 U.S.C app. §§ 1709(b) (11), (b) (12), (d) (3) and (d) (4) (pursuant to the provisions of 46 U.S.C app. § 1719(e) (3))**

RDA and SPA have given CIP and others an unreasonable preference and advantage with respect to, inter alia, the leasing, allocation and use of terminal facilities. RDA, SPA and CIP have subjected CMH, its vessels, its cargoes and its terminal operations to an unreasonable refusal to deal and negotiate and to undue and unreasonable prejudice and disadvantage with respect to, inter alia, the leasing, allocation and use of terminal facilities. RDA and SPA

have refused to negotiate with or to make available to CMH adequate and suitable terminal, pier, dock, and storage facilities, and have interfered with CMH's right to the use of such facilities. RDA and SPA have granted terminal space and concessions to CIP and others while unreasonably denying comparable terminal space and concessions to CMH contrary to RDA's and SPA's mandate as public terminals. RDA and SPA have unjustly discriminated against CMH and its cargoes and unduly preferred CIP.

C. RDA, SPA and CIP may have committed additional violations of the 1984 Act that may be revealed in the course of this proceeding and which will be incorporated herein by reference.

D. The foregoing violations by RDA, SPA and CIP are continuing in nature and as such are incorporated in this Complaint.

VI. INJURY SUFFERED BY COMPLAINANT

By reason of the violations of Section 10 of the 1984 Act as set forth in Part V of this Complaint, CMH has suffered and will continue to suffer substantial, direct and indirect injury, including substantial monetary

damages, as a direct and proximate result of RDA's, SPA's and CIP's unjust and discriminatory conduct; their refusal to lease and their interference in the leasing to CMH of terminal facilities necessary for the present and future operation of CMH's business; their attempt to exclude and their exclusion of CMH from such facilities; their interference in CMH's business relationships; their failure to enforce just and reasonable terminal practices; and their disregard of their responsibilities as public marine terminal operators. Monetary damages shall be in an amount to be established by CMH during the course of this proceeding.

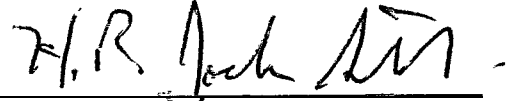
VII. PRAYER FOR RELIEF

CMH prays that RDA, SPA and CIP be required to answer the charges herein; that after due investigation and hearing RDA, SPA and CIP be found to have violated Sections 10 (b) (11) , 10 (b) (12) , 10 (d) (1) , 10 (d) (3) and 10 (d) (4) (pursuant to the provisions of section 20(e)(3)) of the 1984 Act, and such other provisions as to which violations may be proved hereunder; that RDA, SPA and CIP be ordered to cease and desist from the aforementioned

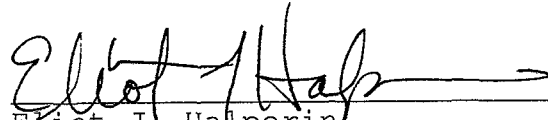
violations; that RDA, SPA and CIP be ordered to cease and desist from seeking to bar CMH from the Charleston Naval Complex; that RDA be ordered to grant CMH such leases at the Charleston Naval Complex as are necessary to provide CMH with adequate terminal facilities, including warehouses, piers, outside storage areas, forklifts and such other real and personal property that will provide CMH the same real and personal property under the same terms granted by RDA to SPA under a lease agreement dated on or about April 9, 1999; that RDA, SPA and CIP be ordered to establish and put into force such practices that the Commission determines to be lawful and reasonable; that RDA, SPA and CIP be ordered to pay reparations in an amount to be determined at a future time for the damages caused to CMH as a direct result of said violations, including interest and attorney's fees as provided in Section 11(g) of the 1984 Act (46 U.S.C. app. § 7110(g)) **and** 46 CFR §§ 502.251 through 502.254; and that the Commission provide CMH such other and further relief as the Commission determines to be proper in the premises.

CMH requests that the hearing be held in Washington, D.C.

Respectfully submitted,



By: H. R. "Joek" Stender
Title: President
Carolina Marine Handling, Inc.



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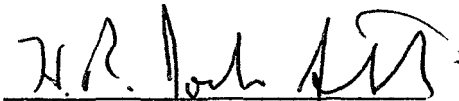
Dated: August 10, 1999

VERIFICATION

District of Columbia) ss:

H. R. "Jock" Stender, being first duly sworn on oath deposes and says that he is the President of Carolina Marine Handling, Inc. and is the person who signed the foregoing Complaint; that he has read the Complaint, and that the facts stated therein, upon his own knowledge and upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public,
this 10th of August, 1999.


H.R. "Jock" Stender


Notary Public

My Commission Expires: _____

LINDA L. WALKER
Notary Public District of Columbia
My Commission Expires October 31, 2002

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CAROLINA MARINE HANDLING, INC.,

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CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No. 99-15

SERVED

AUG 13 1999

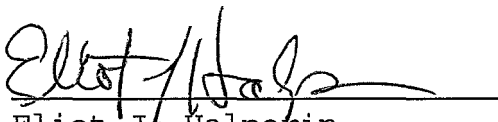
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 29, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of John E. Bourne, Jr., John E. Bourne Real Estate Co., 4930 Rivers Avenue, North Charleston, South Carolina 29406 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant to the subject matter involved in the captioned

proceeding, will continue from day to day until completed.

Respectfully submitted,

A handwritten signature in dark ink, appearing to read "Eliot J. Halperin", is written over a horizontal line.

Eliot J. Halperin

Deana E. Rose

FARKAS & MANELLI, PLLC

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Washington, D.C. 20036

(202) 261-1000

Michael T. Rose

409 Central Avenue

Summerville, S.C. 29483

(843) 871-1821

Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

RECEIVED
99 AUG 11 PM 5:01
OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No. w - e -

SERVED

AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 30, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Warren F. Lasch, President, Charleston International Projects, Inc. and Charleston International Ports, LLC, 41 Ocean Course Drive, Kiawah Island, South Carolina 29455 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all

matters relevant to the subject matter involved in the captioned proceeding, will continue on October 1, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eliot J. Halperin", written over a horizontal line.

Eliot J. Halperin
Deana E. Rose
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Michael T. Rose
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Summerville, S.C. 29483
(843) 871-1821

Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

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Docket No.

99-15

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AUG 13 1999

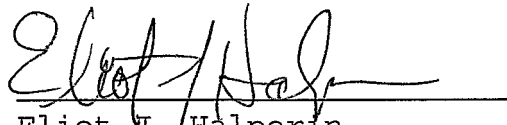
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on October 1, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of William L. Schachte, Jr. Charleston International Projects, Inc. and Charleston International Ports, LLC, 172 Broad Street, Charleston, South Carolina 29401 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all

matters relevant to the subject matter involved in the captioned proceeding, will continue on October 2, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Eliot J. Halperin', written over a horizontal line.

Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

CC 020/030

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,
Complainant.
v.
SOUTH CAROLINA STATE PORTS AUTHORITY;
CHARLESTON NAVAL COMPLEX REDEVELOPMENT
AUTHORITY;
CHARLESTON INTERNATIONAL PROJECTS,
INC.; and
CHARLESTON INTERNATIONAL PORTS, LLC,
Respondents.

Docket No. 99-16

SERVED

AUG 13 1999

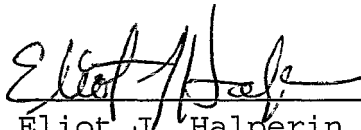
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 25, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Samuel M. Turner, Facility Inspector, Charleston Naval Complex Redevelopment Authority, 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29408-1955 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters

relevant to the subject matter involved in the captioned proceeding, will continue from day to day until completed.

Respectfully submitted,



Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

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BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
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CAROLINA MARINE HANDLING, INC.,

Complainant.

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SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No.

99-16

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AUG 13 1999

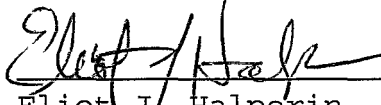
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 27, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Bradley S. Howard, 3440 Cynthia Avenue, Johns Island, South Carolina 29455 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant to the subject matter involved in the captioned proceeding, will continue from day to

day until completed.

Respectfully submitted,

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Eliot J. Halperin

Deana E. Rose

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Summerville, S.C. 29483

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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

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BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;
CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No.

99-15

SERVED

AUG 13 1999

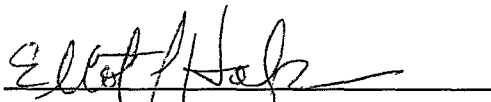
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 28, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Austin Hilligas, Property Manager, Charleston Naval Complex Redevelopment Authority, 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29408-1955 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters

relevant to the subject matter involved in the captioned proceeding, will continue from day to day until completed.

Respectfully submitted,



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Michael T. Rose
409 Central Avenue
Summerville, S.C. 29483
(843) 871-1821

Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
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CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;
CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,
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Respondents.

Docket No.

99-15

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AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 28, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Robert Ryan, Marketing Manager, Charleston Naval Complex Redevelopment Authority, 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29408-1955 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant

to the subject matter involved in the captioned proceeding, will
continue from day to day until completed.

Respectfully submitted,



Eliot J. Halperin

Deana E. Rose

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Summerville, S.C. 29483

(843) 871-1821

Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;
CHARLESTON NAVAL COMPLEX REDEVELOPMENTAUTHORITY;
CHARLESTON INTERNATIONAL PROJECTS,
INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No.

99-16

SERVED

AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 29, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Jerry L. Franks, Vice President and General Manager, Charleston International Projects, Inc. and Charleston International Ports, LLC, c/o 5905 Oaks Street, Hanahan, South Carolina 29406 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The

deposition, as to all matters relevant to the subject matter involved in the captioned proceeding, will continue from day to day until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eliot J. Halperin", is written over a horizontal line.

Eliot J. Halperin

Deana E. Rose

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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

cc 020/830

BEFORE THE FEDERAL MARITIME COMMISSION

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99 AUG 11 PM 5:01

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

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SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

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Respondents.

Docket No. 99-16

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AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 16, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Bernard S. Groseclose, Jr., President, South Carolina State Ports Authority, 176 Concord Street, Charleston, South Carolina 29401 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant to the subject matter

involved in the captioned proceeding, will continue on September 17, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eliot J. Halperin", is written over a horizontal line.

Eliot J. Halperin
Deana E. Rose
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(843) 871-1821

Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

cc 020/030

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BEFORE THE FEDERAL MARITIME COMMISSION

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59 AUG 11 PM 5:01

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

INC.; and

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Respondents.

Docket No.

99-16

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AUG 13 1999

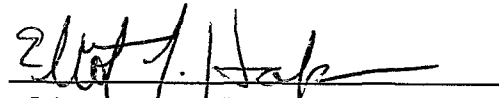
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 17, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of William L. Bethea, Jr., Chairman, South Carolina State Ports Authority, 176 Concord Street, Charleston, South Carolina 29401 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant to the subject matter

involved in the captioned proceeding, will continue on September 18, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,



Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

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Respondents.

Docket No. 99-16

SERVED

AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 22, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of James C. Bryan, Chairman, Charleston Naval Complex Redevelopment Authority, 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29408-1955 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant

to the subject matter involved in the captioned proceeding, will
continue on September 23, 1999 at 9:00 a.m. and from day to day
until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eliot J. Halperin", written over a horizontal line.

Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

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BEFORE THE FEDERAL MARITIME COMMISSION

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OFFICE OF THE SECRETARY
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CAROLINA MARINE HANDLING, INC.,

Complainant.

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SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

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Respondents.

Docket No.

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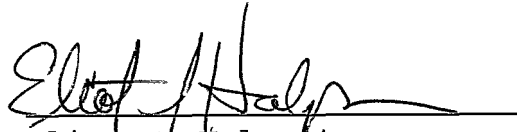
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 23, 1999 commencing at 1 o'clock p.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Jack C. Sprott, Executive Director, Charleston Naval Complex Redevelopment Authority, 1690 Turnbull Avenue, Suite NH-47, Charleston, South Carolina 29408-1955 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters

relevant to the subject matter involved in the captioned proceeding, will continue on September 24, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eliot J. Halperin", written over a horizontal line.

Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999

ORIGINAL

cc 020/030

BEFORE THE FEDERAL MARITIME COMMISSION RECEIVED

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OFFICE OF THE SECRETARY
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CAROLINA MARINE HANDLING, INC.,

Complainant.

v.

SOUTH CAROLINA STATE PORTS AUTHORITY;

CHARLESTON NAVAL COMPLEX REDEVELOPMENT

AUTHORITY;

CHARLESTON INTERNATIONAL PROJECTS,

INC.; and

CHARLESTON INTERNATIONAL PORTS, LLC,

Respondents.

Docket No.

99-16

SERVED

AUG 13 1999

FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 15, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Barnwell, Whaley Patterson & Helms, P.A., 134 Meeting Street, Charleston, South Carolina 29401, complainant, Carolina Marine Handling, Inc., will take the oral deposition of L. Duane Grantham, Vice President, South Carolina State Ports Authority, 176 Concord Street, Charleston, South Carolina 29401 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant to the subject matter

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030

BEFORE THE FEDERAL MARITIME COMMISSION

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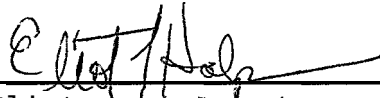
FEDERAL MARITIME COMMISSION

NOTICE OF DEPOSITION

PLEASE TAKE NOTICE that on September 13, 1999 commencing at 9 o'clock a.m. at the offices of the law firm of Nelson, Mullins, Riley & Scarborough, LLP, 1330 Lady Street, Columbia, South Carolina 29201, complainant, Carolina Marine Handling, Inc., will take the oral deposition of Douglas McKay, III, Director, Technology Intensive Industry, South Carolina Department of Commerce, 1201 Main Street, Columbia, South Carolina 29202 pursuant to Rules 62, 201(b), 202 and 203 of the Federal Maritime Commission's Rules of Practice and Procedure (46 CFR 502.62, 201(b), 202 and 203). The deposition, as to all matters relevant

to the subject matter involved in the captioned proceeding, will continue on September 14, 1999 at 9:00 a.m. and from day to day until completed.

Respectfully submitted,



Eliot J. Halperin
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Attorneys for Carolina Marine
Handling, Inc.

Dated: August 10, 1999